

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Brickell	Team: Squad #01	CCRB Case #: 201407210	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/18/2014 7:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/18/2016	Precinct: 113		
Date/Time CV Reported Fri, 07/18/2014 8:26 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/18/2014 8:26 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Vorraro	15194	939668	WARRSEC
2. POM Brian Mchenry	04050	931821	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Zahid Qureshi	02450	905546	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Vorraro	Abuse: PO Matthew Vorraro entered and searched § 87(2)(b)	A . Substantiated
B . POM Matthew Vorraro	Force: PO Matthew Vorraro pointed his gun at § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . POM Brian Mchenry	Force: PO Brian McHenry pointed his gun at § 87(2)(b) and § 87(2)(b)	C . Unsubstantiated
D . POM Matthew Vorraro	Discourtesy: PO Matthew Vorraro spoke discourteously to § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated
E . POM Matthew Vorraro	Discourtesy: PO Matthew Vorraro spoke discourteously to § 87(2)(b) and § 87(2)(b)	E . Unfounded
F . POM Brian Mchenry	Discourtesy: PO Brian McHenry spoke discourteously to § 87(2)(b)	F . Unfounded

Case Summary

On July 18, 2014, § 87(2)(b) received a telephone call from his girlfriend, § 87(2)(b) who informed him that there were three officers from the Queens Warrant Section outside of his home. § 87(2)(b) her mother, § 87(2)(b) § 87(2)(b)'s brother, § 87(2)(b) and § 87(2)(b)'s girlfriend, § 87(2)(b) were in their bedroom on the second floor at the time. PO Vorraro climbed through the window of the house and opened the door for PO McHenry (**Allegation A**). They were looking for an individual named § 87(2)(b). The officers did not find § 87(2)(b). Upon hearing a commotion downstairs, § 87(2)(b) opened his bedroom door, and PO Vorraro and PO McHenry allegedly pointed their guns at him and § 87(2)(b) (**Allegations B and C**). PO Vorraro allegedly said to § 87(2)(b) and § 87(2)(b) "Who the fuck are you? Where's your fucking ID? Show us your fucking ID! Go back in the fucking room and sit the fuck down," (**Allegation D**). § 87(2)(b) returned home a few minutes later and confronted PO Vorraro and PO McHenry. In response to requests to see the warrant and a picture of § 87(2)(b), PO Vorraro told § 87(2)(b) and § 87(2)(b) "We don't have to show you shit." As the officers were leaving, § 87(2)(b) said that they were going to take the officers to court, and PO Vorraro allegedly responded, "Who gives a fuck, call whoever you want, we're the police," (**Allegation E**). § 87(2)(b) told PO Brian McHenry to close the gate, and PO McHenry allegedly responded, "Fuck your gate," (**Allegation F**).

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation § 87(2)(b). As of March 9, 2015, no notice of claim had been filed, and a new notice of claim request was submitted on April 15, 2015. No one was arrested as a result of the incident.

Civilian and Officer CCRB Histories

- This is the first complaint involving § 87(2)(b) and § 87(2)(b) (encl. 2A – C).
- PO Matthew Vorraro has been a member of the service for nine years, and there are no substantiated CCRB complaints against him (encl. 1A). § 87(2)(g)
- PO Brian McHenry has been a member of the service for twelve years, and there was one substantiated complaint against him (encl. 1B – C).
 - In complaint 200506487, the CCRB substantiated a refusal to provide name and shield allegation against PO McHenry, and recommended instructions. In April 2006 the NYPD issued instructions to PO McHenry.
 - In complaints 200601807 and 201004630, PO McHenry allegedly used the word "Fuck." Both cases truncated (encl. 1D – G).

Attempts to Contact Civilians

§ 87(2)(b) stated that she did not wish to provide a statement. The undersigned spoke with § 87(2)(b) on January 29, 2015, who was present at the time of the incident, but did not witness the interaction (encl. 5K).

Finding and Recommendations

Allegations Not Pleaded

§ 87(2)(b) alleged that as a result of the incident, the television in the living room was pushed against the wall, causing issues with the screen, and a small figurine in the living room was also broken. § 87(2)(g).

§ 87(2)(b) alleged that PO Vorraro and PO McHenry pointed their guns at § 87(2)(b) when he entered the house, however, § 87(2)(b) did not make these allegations on behalf of himself. § 87(2)(g)

Allegation A – Abuse of Authority: PO Matthew Vorraro entered and searched § 87(2)(b)

It is undisputed by virtue of PO Vorraro and PO McHenry’s testimony that they entered and searched § 87(2)(b) during the execution of arrest warrant § 87(2)(b) (encl. 13A), which was issued on § 87(2)(b). It is also undisputed by the same testimony that they gained entry as a result of PO Vorraro climbing through a window. Lastly, it is undisputed that PO Vorraro and PO McHenry had no specific information that the target of the warrant, § 87(2)(b), was at the address at the time, and that no checks were run prior to the arrest warrant execution to verify that he lived there.

PO Vorraro and PO McHenry testified that they rang the doorbell and knocked on the door for approximately ten minutes before an unidentified individual came to the window, looked outside, and then went back upstairs. Neither of them could tell if the individual was male or female, and they were unable to describe the person in any detail. A few seconds later PO Vorraro walked to the right side of the house, climbed through an unlocked window, and then let PO McHenry into the building to search for § 87(2)(b).

An arrest warrant gives an officer authority to enter the residence of a suspect to effect an arrest, provided that the officer reasonably believes the suspect to be present at the time. People v. Rodriguez, 19 Misc. 3d 302 (Crim. Ct., New York Co., 2008) (encl. 0A – E). Absent a search warrant or any type of exigent circumstances, an officer requires consent in order to search a private residence. Georgia v. Randolph, 547 U.S. 103 (2005) (encl. OF – C1). The listing of a suspect’s last known home address on an arrest warrant can provide an officer with this reasonable suspicion, provided that a prolonged period of time does not pass between the issuing and the execution of the warrant. People v. Cabral, 147 Misc. 2d 1000 (Sup. Ct., Kings Co., 1990) (encl. 0D1 – H1).

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B – PO Matthew Vorraro pointed his gun at § 87(2)(b) and § 87(2)(b)

Allegation C – PO Brian McHenry pointed his gun at § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that when § 87(2)(b) opened his bedroom door, both PO Vorraro and PO McHenry were pointing their guns at him and § 87(2)(b) who was standing behind him.

§ 87(2)(b) provided a photograph of PO Vorraro standing in the doorway of his bedroom (encl. 5G). PO Vorraro’s right arm is outstretched facing the ground, however, it is unclear if he is

holding anything in his hand, as the picture is somewhat blurry, and the view of his hand is partially obscured by the doorway.

PO Vorraro did not recall whether he had his gun drawn when he entered the house. He did not recall whether PO McHenry had his gun drawn during the incident. PO Vorraro testified that the door at the top of the stairs was open, and that § 87(2)(b) was sitting on the bed and § 87(2)(b) was standing. They were not doing anything threatening, and he denied pointing his gun at either of them. The undersigned showed PO Vorraro the photograph taken by § 87(2)(b) (encl. 5G). He confirmed that it was him in the photograph, and that he is right-handed, and draws his gun with his right hand. PO Vorraro said that based on the photograph he did not appear to be holding anything, including a gun. The undersigned showed him a second, close-up picture of the same image (encl. 5H). He said that based on his body language, he appeared to be speaking with § 87(2)(b) at the time, and that he would have no reason to have his gun out at the time because of the nature of their conversation, and as such he believed that his gun was not drawn. PO Vorraro did not believe that he was holding anything, but said that even if he was, it was definitely not a gun.

PO McHenry did not recall whether he drew his gun during the incident, but denied pointing his gun at anyone during the course of the incident. He did not see PO Vorraro draw his gun or point it at any individual during the incident. When PO McHenry was shown the photograph of PO Vorraro, he confirmed that it was in fact PO Vorraro, but was unable to see whether PO Vorraro had anything in his hand. The undersigned showed him the close up photograph, however, he was unable to say whether he was holding anything.

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be closed as **unsubstantiated**.

Allegation D – PO Matthew Vorraro spoke discourteously to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that after the officers came upstairs, PO Vorraro said, “Who the fuck are you? Where’s your fucking ID? Show us your fucking ID!” She initially testified that the officers made the aforementioned statements without profanity, however, when asked whether the officers used any profanity during the incident, § 87(2)(b) amended her testimony to include the curses.

§ 87(2)(b) did not initially corroborate any profanity, however, when asked whether the officers used any profanity during the incident, he said that PO Vorraro said, “Where’s your fucking ID?” and told him and § 87(2)(b) to “Go back in the fucking room and sit the fuck down.”

PO Vorraro denied saying, “Who the fuck are you,” or, “Where’s your fucking ID? Show us your fucking ID.” § 87(2)(b) got up from the bed at some point, however, PO Vorraro did not say, “Go back in the fucking room and sit the fuck down.” PO McHenry did not hear PO Vorraro make any of the previous statements, or use profanity at any point during the incident.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E – Discourtesy: PO Matthew Vorraro spoke discourteously to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that she and the other occupants of the house asked to see a picture of § 87(2)(b), and that PO Vorraro responded, “We don’t have to show you shit.” They asked to see a copy of the warrant, and he again stated, “We don’t have to show you shit.” As the officers were leaving the house, § 87(2)(b) told them that they were going to bring the officers to court, and PO Vorraro responded, “Who gives a fuck, call whoever you want, we’re the police.”

Neither § 87(2)(b) nor § 87(2)(b) corroborated any of the alleged statements made. The audio recorded by § 87(2)(b) which he said encompassed the entire incident from the time he got home, did not capture any of the alleged statements.

PO Vorraro denied saying, “We don’t have to show you shit,” in reference to any questions about the warrant. PO Vorraro did not recall whether anyone said anything about the civilians taking them to court, however, he denied saying, “Who gives a fuck, call whoever you want, we’re the police.” PO Vorraro did not recall using profanity towards the civilians at any point. PO McHenry did not hear PO Vorraro make any of the previous statements, or use any profanity during the incident.

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **unfounded**.

Allegation F – Discourtesy: PO Brian McHenry spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that as the officers were leaving his house he told PO McHenry to close the gate behind him. PO McHenry responded, “Fuck your gate,” as he was walking away.

§ 87(2)(b) and § 87(2)(b) were both standing near the front door as the officers were leaving the house. § 87(2)(b) testified that § 87(2)(b) asked the officers to close the gate, and that one of them said, “Why don’t you close it?” § 87(2)(b) did not recall any conversation related to the gate.

§ 87(2)(b) provided an audio recording of the incident, which he testified began when he entered the house and ended when the officers left the scene (encl. 6). § 87(2)(b) can be heard telling the officers to close the gate, however, any subsequent audio was distorted, and no response was captured, including PO McHenry saying, “Fuck your gate,” or using any profanity.

PO McHenry denied saying, “Fuck your gate,” to § 87(2)(b) or using any profanity, and PO Vorraro denied hearing PO McHenry make the alleged statement or use any profanity. Sgt. Qureshi was not in a position to have heard the alleged discourtesy.

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **unfounded**.

Pod: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date